

21STCV17214 21STCV17214

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 21STCV17214 Hearing Date: July 22, 2026 Dept: 529

TERPEN INC., ET AL. v. MEMORY BUSS,
ET AL.

MOTION FOR ATTORNEY FEES, costs, and prejudgment
interest

Date of Hearing: 7/22/2026 Trial

Date: Held on 1/6/26

Department: 45 Case

No.: 21STCV17214

Moving Party: Plaintiffs

Terpen Inc., Jairo Arrieta, Joel Arrieta, and Juan Carlos Diaz

Responding Party: Unopposed

BACKGROUND

On May 6, 2021, Plaintiffs Terpen Inc., Jairo Arrieta, Joel Arrieta, and Juan Carlos Diaz filed a complaint against Defendants Memory Buss, Arcturian Light, LLC and Pleiadian Light, LLC. Plaintiffs allege this case arises from Defendant Memory Buss fraudulently inducing Terpen, a non-Accredited Investor, to invest \$1.5 million in exchange for promised ownership in Defendants. Furthermore, plaintiffs allege Buss and other Defendants owe the Plaintiffs over \$600,000 in unpaid wages for bringing the premises occupied by Defendants into legal compliance and other work expressly requested by Buss.

On May 11, 2026, Plaintiffs filed the instant Motion for Attorney Fees, Costs, and Prejudgment Interest. The matter came for hearing on June 22, 2026; the motion was granted in part, wherein Plaintiffs were awarded \$398,486.03 in attorney fees and \$7,750.86 in costs, and continued for Plaintiffs to provide the statutory interest calculation via supplemental declaration. On July 9, 2026, Plaintiffs filed their Supplemental Declaration re Interest Calculation.

[Tentative] Ruling

Plaintiffs Terpen Inc., Jairo Arrieta, Joel Arrieta, and Juan Carlos Diaz's Motion for Pre-Judgment Interest is GRANTED in the amount of \$1,091,121.40.

LEGAL STANDARD

Code of Civil Procedure Section 3287, subdivision (a) provides that "[a] person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day. . ." (Code Civ. Proc., § 3287, subd. (a).)

" 'Damages are deemed certain or capable of being made certain within the provisions of subdivision (a) of section 3287 where there is essentially no dispute between the parties concerning the basis of computation of damages if any are recoverable but where their dispute centers on the issue of liability giving rise to damage.' [Citations]." (Duale v. Mercedes-Benz USA, LLC (2007) 148 Cal.App.4th 718, 729.)

ANALYSIS

Here, Plaintiff seeks prejudgment interest in the amount of \$1,091,121.40 from May 6, 2021 to April 27, 2026 as follows:

\$819,141.36 for Plaintiff Terpen, Inc.,

based on the \$1,645,495.86 awarded at trial, calculated at a daily interest rate of \$450.8208 [$\$1,645,495.86 \times 0.10 (10\%)/365$] multiplied by 1,817 days;

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\$92,402.85 for Plaintiff Jairo Arrieta,

based on the \$185,619.38 awarded at trial, calculated at a daily interest rate of \$50.8546 [$\$185,619.38 \times 0.10/365$] multiplied by 1,817 days;

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\$80,909.04 for Plaintiff Joel Arrieta,

based on the \$162,530.55 awarded at trial, calculated at a daily interest rate of \$44.5289 [$\$162,530.55 \times 0.10/365$] multiplied by 1,817 days; and

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\$98,668.16 for Plaintiff Juan Carlos

Diaz, based on the \$198,205.17 awarded at trial, calculated at a daily interest rate of \$54.3028 [$\$198,205.17 \times 0.10/365$] multiplied by 1,817 days.

Accordingly, the court grants the request for prejudgment interest in the amount of \$1,091,121.40.

CONCLUSION

Based on the foregoing, Plaintiffs Terpen Inc., Jairo Arrieta, Joel Arrieta, and Juan Carlos Diaz's Motion for Pre-Judgment Interest is GRANTED in the amount of \$1,091,121.40, to be divided between the parties as set forth above. The judgment should reflect the allocation between the plaintiffs.